> the fundamental right to freedom of religion, Explanation II to Art. 25 has made it clear that in sub-clause (b) of clause (2), the reference to Hindus shall be construed as including a reference to persons professing the Sikh, Jaina or Buddhist religion, and the reference to Hindu religious institutions shall be construed accordingly. Consistently with this constitutional provision, the Hindu Marriage Act, 1955; the Hindu Succession Act, 1956; the Hindu Minority and Guardianship Act, 1956; and the Hindu Adoptions and Maintenance Act, 1956 have extended the application of these Acts to all persons who can be regarded as Hindus in this broad and comprehensive sense.

The above-mentioned judgment was delivered by the Supreme Court in the context of the Swaminarayan sect taking the position that its followers did not profess the Hindu religion, a contention which the Court rejected. When a similar position was sought to be taken by the Ramakrishna Mission in *Bramchari Sidheswar Bhai & ors.* v. *State of West Bengal*, the Supreme Court reiterated the position set out in *Shastri Yagnapurushdasji*. Therefore, at least in two landmark judgments, the Supreme Court has recognised that Dharmic OET is different from the Christian and Islamic OETs, and that its approximation as ‘religion’ is only for the purposes of equal enjoyment of fundamental religious freedoms under the Constitution.

Moving to the next limb, that is, colonial reshaping of Indic faith systems, while it is true that the Christian coloniser did seek to reconstruct the Indic OET by applying the Christian standard of ‘religion’, it would be incorrect to state that Indic sects or sampradayas did not exist or lacked unity under the umbrella of Sanatana Dharma prior to colonisation. Simply stated, the coloniser’s attempt to redefine ‘the Hindu religion’ cannot and does not render ‘Dharma’ or ‘Dharmic unity’ an artificial colonial construct. On this specific subject, Dr. S.N. Balagangadhara[12] is of the view that be it ‘Hindu*ism*’ ‘Buddh*ism*’, or ‘Jain*ism*’, each of these is a colonial construct in an empirical sense, but *not* in the epistemological sense. In other words, the existence of Dharmic OET systems or sampradayas obviously predates the Christian European coloniser, while only their reconstruction as ‘religions’ in the Christian sense is attributable to him. Critically, this must be understood in the context of the global application of the concept of ‘religion’ by Christian Europe or the West to approximate the